AN ADVISORY NOTE

The ilé healthcare venture

The shareholding proposal and founders' agreement for the home-care and residential eldercare business, with Dr Chris Anele as clinical co-founder and Consult for Africa building and managing for equity.

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Private and confidential. Advisory, not a legal or tax opinion.

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Date: July 2026

Subject: The ilé healthcare venture, shareholding and founders' agreement

A note before the detail

Kemi, this note structures ilé, the healthcare arm, whose core is home services and residential eldercare. It sits alongside the companion note on the group holding company: that note explains the tax regime and the structure that will hold your ilé stake, this one settles who owns ilé, on what terms, and how the founders' agreement should read. Read them together.

One thing I want to say before anything else, because it matters. In this venture Consult for Africa is not a neutral adviser, we are a proposed shareholder. We are offering to build the technology and manage the facility and services in exchange for equity, which means my advice here is not disinterested. You should have this note reviewed by independent legal and tax counsel who act only for you, and I would insist on it before you sign anything. I would rather flag that plainly than have it sit unsaid.

Who is at the table

Three parties are coming together to build ilé.

- **You, through your holding company, not personally.** This is the right call, and worth stating why. Holding your ilé stake through the parent means the value accrues where the rest of your group's value sits, the dividends flow up as franked income, your personal liability is limited, and the stake passes under the same succession plan as everything else. It also keeps a clean line between you as an individual and you as an institution, which matters when you have co-founders and, later, investors.
- **Dr Chris Anele, clinical co-founder.** A neurosurgeon and spine surgeon, joining as a founder and the clinical conscience of the business. He is not putting in capital. What he brings is clinical credibility, standards and leadership, which in a healthcare venture is not a soft contribution, it is the licence to operate.
- **Consult for Africa.** We build the technology platform and manage the facility and services, and we take equity for doing so rather than only fees. We have skin in the game and are aligned to the long-term success of the business.

A proposed shareholding structure

The numbers below are for your decision. They express a defensible logic, not a fixed answer.

Shareholder	Stake	Nature of the holding
Kemi Balogun, via HoldCo	51%	Founder and principal sponsor. Capital and control
Consult for Africa	34%	Earned for building the technology and managing the facility and services. Vesting
Dr Chris Anele	10%	Clinical co-founder. Sweat equity, capped grant, vesting

Shareholder	Stake	Nature of the holding
Employee and clinical leadership pool	5%	Reserved for future medical directors and senior clinical hires

FIGURE

The proposed ilé cap table. Kemi holds control through the HoldCo, Consult for Africa is a committed minority builder, Dr Anele holds a capped clinical founder stake, and a small pool is reserved for future clinical leadership.

The logic: you hold control at 51%. Consult for Africa's 34% reflects that we are doing two jobs, building the platform and running the operation, not one, and that we are paid in equity rather than cash for both. Dr Anele's 10% is the cap on his granted equity, in line with your steer, with a route to more that he pays for, described below. The 5% pool is enough to bring on a first medical director and a senior clinical hire or two without going back to renegotiate everyone's slice.

Two things about these specific numbers are worth being conscious of, because they are deliberate trade-offs rather than accidents.

- **51% is control, but it is a thin margin.** As soon as new shares are issued, whether from the employee pool, from Dr Anele exercising his top-up right, or in a future raise, your 51% dilutes. Unless you participate pro-rata or those issuances are drawn from a pre-agreed pool, you can slip below 50% without intending to. The fix is simple and standard: agree in the founders' agreement that the employee pool and Dr Anele's top-ups come out of the whole cap table proportionally (so everyone dilutes together, and your control is preserved), and keep a pre-emption right so you can always follow your money in a raise. Worth deciding now, cheaply, rather than discovering it at the next round.
- **34% gives Consult for Africa a blocking position on special resolutions.** Under CAMA 2020 the biggest decisions (changing the constitution, certain share issues, a winding-up) need a 75% special resolution, so any holder above 25% can block them. At 34% we would hold that blocking stake. I flag it in the interest of full disclosure, not because it is a problem: it is a normal consequence of a serious minority partner, and it is aligned with us being a committed long-term builder rather than a passive holder. If you would rather it did not sit there, the answer is not a smaller stake but a clear, agreed list of reserved matters in the founders' agreement that says exactly which decisions need whose consent.

Dr Anele's terms: a capped grant, with cliff, vesting and a discounted route to more

Your instruction was precise and correct: cap his founder grant at 10%, but give him a real opportunity to build a larger stake by buying more, at a genuine discount, at each fundraise. Here is how to make that concrete and fair to both sides.

The 10% is granted, but it vests. It is not a gift on day one. Founder equity that is handed over unconditionally is a standing risk: if the founder leaves in year one, the business is left carrying a large block of shares owned by someone no longer contributing. The universal fix is a cliff and a vesting schedule.

- **Cliff of one year.** If Dr Anele leaves, or the relationship ends, within the first twelve months, none of the 10% has vested and it returns to the company. This protects everyone, including him, from a bad early fit.

- **Vesting over four years.** After the one-year cliff (at which point a quarter has vested), the rest vests monthly across the remaining three years. Full ownership of the 10% is earned by staying and contributing for four years.
- **Reverse vesting, documented cleanly.** Mechanically, issue him the full 10% at the start, but subject to the company's right to buy back the unvested portion at nominal value if he leaves. This is the standard and cleanest way to do it, and it means he is a shareholder from day one with the upside tied to staying.
- **Good leaver and bad leaver.** If he leaves for reasons outside his control (ill health, for example), he keeps what has vested. If he leaves in bad faith or is removed for cause, the company can recover more, including at nominal value. These terms live in the founders' agreement.

The discounted top-up right, at each raise. Beyond the granted 10%, give Dr Anele a personal, non-transferable right to subscribe for additional shares at each future priced round, at a meaningful discount to the round price, up to a defined ceiling (for example, taking him from 10% toward 15% over time). The key features that keep this fair and clean:

- It is a right to buy, not a further grant. He pays for these shares, at a discount, which both rewards him and keeps his commitment real.
- It is capped, so his total holding cannot drift past the ceiling you set.
- It is conditional on continued service and good-leaver status, so it rewards the person who stays and builds.
- Be aware that the discount itself, the gap between what he pays and the round price, can be treated as a taxable benefit in his hands. Flag it, and price the discount with that in mind.

This gives him exactly what you intended: a fair founder stake he earns, and a genuine, rewarded path to more that he invests in himself.

Consult for Africa's build-and-manage-for-equity position

Our 34% is not a passive founder stake, it is payment in equity for two distinct jobs, and it should vest against both.

- **A build tranche,** for designing and delivering the technology platform. This vests against delivery milestones (platform live, integrated, operating), not just time, because it is paid for a defined piece of work.
- **A management tranche,** for running the facility and services over the management term. This vests across the life of the management engagement, with a clawback if we step away early, so our equity tracks the value we actually deliver over time.

We are comfortable with vesting and clawback on our own shares. It is the right signal: we are betting on ilé's success alongside you, not taking a stake and leaving.

One tax point applies to both our shares and Dr Anele's. Shares issued in exchange for services, rather than cash, are "sweat equity", and Nigerian tax treats the value received as taxable income at the point the shares are issued or vest. The standard and legitimate way to manage this is to issue the shares at formation, when the company is worth very little, so the taxable value is close to nil, rather than later when the shares are worth much more. This is a strong reason to paper the ilé cap table early, at incorporation, rather than waiting until the business has value. Confirm the mechanics with tax counsel, but the direction is clear: do it early.

The founders' agreement: what it must contain

You were right to insist on founders' agreements. For ilé, the agreement between HoldCo, Dr Anele and Consult for Africa should settle, at a minimum:

- The cap table, and the vesting, cliff, reverse-vesting and leaver terms for each founder.
- The discounted top-up right for Dr Anele, with its ceiling and conditions.
- **Intellectual property assignment.** Every founder's contributions, Dr Anele's clinical protocols and Consult for Africa's technology, are assigned to or exclusively licensed by the company. This is non-negotiable in a business whose value is its systems and standards.
- Board composition and reserved matters: the decisions that need your consent as majority holder, and the decisions the board takes together.
- Pre-emption rights, and tag-along and drag-along rights, so that future share transfers and a future sale are orderly.
- Roles, time commitment and the standards each founder must hold to, especially clinical governance.
- Non-compete and non-solicit terms appropriate to each founder.
- Dividend policy, and how and when value is returned.

Important notes and next steps

A few things I want to be explicit about.

- **Consult for Africa is an interested party in this venture.** We are proposing to take 34%. That means my advice here is not disinterested, and you should have it reviewed by independent legal and tax counsel who act only for you. I would insist on that before you sign anything.
- **This note is advisory, not a legal or tax opinion.** The 2025 tax Acts are new, partly untested, and in places disputed even among the major firms. Confirm the load-bearing points, in particular the sweat-equity mechanics and the taxable-benefit treatment of Dr Anele's discount, with qualified Nigerian counsel before acting.
- **Sequence it right.** Settle the group structure first, so that HoldCo exists to hold your ilé stake, then paper the ilé cap table early and at low valuation to keep the sweat-equity tax cost near nil, then build.

The next move is a working session to turn this into your decided cap table, and to instruct counsel on the founders' agreement, in parallel with the group structure.

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